

Mula Jagadeesh vs Science And Technology on 3 December, 2025

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O.A.No.170/00341/2024/CAT/BANGALORE

CENTRAL ADMINISTRATIVE TRIBUNAL

BANGALORE BENCH, BENGALURU

ORIGINAL APPLICATION No.170/00341/2024

Order Reserved on: 19.11.2025

Date of Order: 03.12.2025

CORAM:

HON'BLE MRS. JUSTICE S. SUJATHA, MEMBER (J)

HON'BLE DR. SANJIV KUMAR, MEMBER (A)

Mr Mula Jagadeesh
Senior Principal Scientist (Emp No 53573)
Aged 51 years
S/o M Pedda Venkateshwarlu,
R/a 306, Block-1A,
Vivek Paradise, 2nd Cross,
Chowdeswari temple Street,
Lake View Road, Byrasandra,
CV Raman Nagar,
Bengaluru-560093

..... Applicant

(By Advocate: Shri.Abhishek M.R)

Vs.

1. The Joint Secretary
The CSIR
Anusandhan Bhawan, #2,
Rafi Marg, Sansad Marg Area,
New Delhi, Delhi 110001

2. Director General
CSIR
Anusandhan Bhawan, 2,
Rafi Marg, Sansad Marg Area,
New Delhi, Delhi 110001

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3. Director
CSIR-National Aerospace Laboratories
HAL Old Airport Rd,
Kodihalli, Bengaluru, Karnataka 560017

4. Section Officer
CSIR-National Aerospace Laboratories
HAL Old Airport Rd, Kodihalli, Bengaluru,
Karnataka 560017

5. Administrative Officer
CSIR-National Aerospace Laboratories
HAL Old Airport Rd, Kodihalli, Bengaluru,
Karnataka 560017

6. Director
ISRO
Sriharikota,
Andra Pradesh-524124

.....Respondents

(By Advocate Shri.Anand K for Respondent Nos.1 to 5)

ORDER

PER: DR. SANJIV KUMAR, MEMBER (A)

This Original Application has been filed under Section 19 of the Administrative Tribunal's Act. 1985 to claim the following reliefs:

" i) Issue a writ or order or direction in certiorari or any other writ or order or direction quashing the order bearing no CSIR-NAL/Admin-ADB/2020-21 dated 13.07.2020 (Annexure 15), order bearing no CSIR-NAL/ Admin- ADB/2020-21 dated SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE 04.09.2020 (Annexure 17), order bearing □□ADB(Estt)/53573/RNCAC dated 25.07.2022 (Annexure 20), order bearing no AII/53573/Sec IV dated 05.04.2023(Annexure 23) passed by the respondent no 3 refusing a switchover from CPF to GPF scheme for the applicant.

ii) Issue a writ or order or direction in certiorari or any other writ or order or direction directing the respondents no 1-5 to consider the request of the applicant for switchover from CPF to GPF scheme as per his representations.

iii) Grant such other reliefs as may deem fit in the circumstances of the case;"

2. The reliefs are claimed based on the grounds as mentioned in paragraphs 5(a) to (d) of the Original Application. The brief facts of the case of the applicant, as mentioned in the synopsis of the O. A are that the applicant came to be appointed as Scientist/Engineer-SC vide appointment letter dated 03.11.2000 and joined services on 04.12.2000 at the Indian Space Research Organisation, Sriharikota. Pursuant to the appointment order, the applicant reported for duty and after completion of his probationary period, his services came to be confirmed in the said post. As per the cadre and recruitment rules of the respondent institution, the next promotional post is from the post SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE of Scientist/Engineer SC to SD. The applicant, by virtue of residency period and merit, became fully qualified and eligible for promotion to the next higher cadre as he was not suffering from any disqualification. Accordingly, the applicant came to be promoted from time to time by virtue of his seniority.

3. The respondent No.6 Organization then issued an O. M dated 16.07.2001 titled "Exercise of Option-Switchover to GPF and Pension Scheme from CPF in respect of Scientific and Technical Personnel" to the applicant. The O. M further read as "If no option in writing to retain the CPF scheme is received in Administration as above, he/she will be brought under the GPF scheme automatically on completion of 20 years of service without further intimation."

4. The applicant later expressed his desire to join the NAL, i.e., the respondent no 3 organization, through proper channel. In this regard, the respondent no. 6 organization, issued a No Objection Certificate to the applicant granting him permission to apply for the post of Scientist, Gr IV (2) at National Aerospace Laboratories, Bangalore.

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5. It is submitted that the respondent no. 3 Organization issued an offer of appointment as Scientist in Gr IV (2) vide letter bearing no 4(111)4/2005-A1 dated 17.08.2006. Subsequently, the applicant has tendered technical resignation on a permanent absorption basis vide letter dated 21.08.2006 and relieved on 13.09.2006.

6. It is submitted that the applicant joined the services of respondent no 3 organization by reporting for duty on 14.09.2006 and after completion of his probationary period, his services came to be confirmed in the said post vide OM dated 28.09.2007. The applicant was forced to be covered under NPS as a new entrant instead of considering his previous service rendered in the central government. On 05.11.2007, respondent no. 6 organization cleared his CPF final settlement amount without transferring it to the respondent no. 3 organization. The Department of Economic Affairs then introduced the New Pension Scheme vide Notification No 5/7/2003-ECB.PR dated 22.12.2003 for all central government employees joining services on or after 01.01.2004.

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7. The respondent no 3 vide O. M dated 27.08.2012, announced a revision in the pay of the applicant after recognizing due pay protection from his last pay drawn on his exit from ISRO and that it was made through the proper channel. The applicant gave a representation vide letter dated 28.05.2020 to respondent no 3 seeking to be covered under the CCS (Pension) Rules 1972 and for switchover from CPF/NPS to GPF scheme. The respondent no 4 Section officer of NAL, vide O.M dated 13.07.2020 refused to accede to the request of the applicant to switch over from CPF to GPF scheme on the grounds that he was covered under CPF at ISRO and was governed under NPS w.e.f 14.09.2006 on his joining CSIR-NAL.

8. The applicant gave 5 representation letters in total and the same were refused through the OMs of the respondent No.4, Section Officer, on grounds that they are arbitrary. Hence, this application.

9. On notice, the respondents have filed their reply and, along with a Memo dated 24.09.2025, certain documents have SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE also been filed by the respondents. The applicant has not filed any rejoinder.

10. Miscellaneous Application No.350 of 2024 has been filed for the delay of 1335 days in filing the Original Application.

11. The case came up for final hearing on 19.11.2025. Shri.Abhishek M.R for the applicant and Shri.Ananda K for respondent nos.1 to 5 were present and heard. After service of notice, nobody has appeared on behalf of respondent no.6, as per the order of this Tribunal on 12.09.2024, respondent no.6 was declared as ex-parte.

12. We have carefully gone through the entire record and considered the rival contentions.

13. The basic fact of the applicant is that he was earlier appointed as a Scientist on 03.11.2000 by the Indian Space Research Organisation (ISRO Sriharikota) and his pay scale was covered under the CPF Scheme at the time of joining the Organization. He joined and completed his probation and was confirmed in service, and from Scientist 'SC' he was promoted to Scientist 'SD' on 01.07.2005. In ISRO an O. M SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE No.SCF:PGA:ESTT-111:1.16 dated 16.7.2001 was issued by respondent no.6 with the subject, "Exercise of Option - Switchover to GPF and Pension Scheme from CPF in respect of Scientific and Technical Personnel - Regarding." which is marked as Annexure A-3 which inter-alia other things mentioned that:

" OFFICE MEMORANDUM Sub: Exercise of Option Switchover to GPF and Pension Scheme from CPF in respect of Scientific and Technical Personnel Regarding.

A copy of OM No.2/10(2)/87-1(Vol.V) dated 30.05.1997 is enclosed Since Shri.Mulajagadesh. E 14207 is still governed under CPF scheme, the contents of the OM are brought to his notice for appropriate action in the matter. In case he/she desires to retain CPF Scheme, he/she may submit his/her specific option for retaining CPF Scheme at any time but not later than completion of 20 years of his/her service to this office through proper channel. If no option in writing to retain CPF Scheme is received in Administration as above he/she will be brought under GPF scheme automatically on completion of 20 years of service without further intimation.

Receipt of this memorandum may please be acknowledged in the format enclosed."

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14. In the meantime, through proper channels, the applicant through his earlier employer, ISRO, applied for a Scientist Post in National Aerospace Laboratories (NAL for short). Necessary No Objection Certificate to the applicant was given on 05.07.2006 and subsequently offer of appointment by respondent no.3, i.e., NAL authority vide their letter dated 17.08.2006 offered him a job and his technical resignation dated 21.08.2006 on permanent absorption basis in the new appointment was accepted by the earlier employer, and he was relieved from his earlier employer ISRO on 13.09.2006. He joined his new employer NAL (Respondent no.3) Organisation on 14.09.2006. His probation was confirmed after due process vide O.M dated 28.09.2007. The applicant alleges that he was forced to be covered under NPS as a new entrant instead of considering his earlier services rendered in ISRO which is a sister Central Government Organisation.

15. In due course, on 05.11.2007, the applicant's earlier employer, ISRO, respondent no.6 organisation, cleared his CPF final settlement amount without transferring it to the respondent no.3 organisation, NAL. The applicant further says that it is SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE pertinent to note that Government of India brought a new pension scheme vide O.M dated 22.12.2003 which was applicable to those who joined on or after 01.01.2004 in Government of India employment. The applicant further says that his new employer, NAL, i.e., respondent no.3 issued an order for his pay protection etc. on 27.08.2012 based on his earlier service in ISRO (Annexure A-13).

16. On 28.05.2020, the applicant submitted a representation to respondent no.3 seeking their approval to switchover from CPF/NPS to the old CCS (Pension) Rules, 1972 as per various circulars of the Government of India which application came to be rejected by respondent no.4 vide O.M dated 13.07.2020; by which he refused to accede to the request of the applicant to switch-over from CPF to GPF Scheme on the ground that he was covered under CPF at ISRO and was governed under NPS w.e.f 14.09.2006 on his joining CSIR-NAL. Subsequently, the applicant gave four more representations dated 30.07.2020, 30.10.2020, 03.12.2021 and the last one on 21.11.2022, each of them were rejected except the last one wherein respondent no.3 recommended the case of the applicant as being eligible vide SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05

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" OFFICE MEMORANDUM Sub: Request for considering under CCS (Pension) Rules, 1972 in r/o Shri Jagadeesh M. Sr Principal Scientist. QAAD Ref : 1 His application dated 21.11.2022 2 CSIR letter dated 20.03.2023 Shri. Jagadeesh M. Sr. Principal Scientist, Emp. No. 53573. QAAD vide his request dated 21.11.2022 had requested to forward his representation to CSIR for considering him under CCS (Pension) Rules, The request was considered by Director, CSIR-NAL and was forwarded to CSIR in response. CSIR vide their letter cited at reference (2) above, have not acceded to the request of Shri Jagadeesh stating that "the request has been re-examined viz-a-viz the recommendations of Director, NAL. It is a matter of records that Shri Mula joined NAL after tendering resignation from ISRO where he was covered under the CPF scheme. Hence he could not be covered under the Old Pension Scheme as new entry to OPS has been barred wef 01.01.2004 Therefore, the request of Shri Mula to cover him in Old Pension Scheme is not acceptable. The SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE decision conveyed vide this office letter of even number dated 6/8.07.2022 is reiterated"

17. Aggrieved by the same, the applicant has filed this Original Application on the following grounds:

"a) The orders of refusal to switch over from CPF to GPF are totally arbitrary, capricious, erroneous and non-speaking. The said order is against the spirit of hard working, committed and dedicated employees like the petitioner who has rendered yeomen service to the respondent organisation's growth. Therefore, impugned orders ought to be set aside.

b) The OM Dated 16.07.2001(Annexure A3) read along with OM dated 30.05.1997 clearly stipulates that "if no option is received in writing for retaining CPF scheme before 20 years of service, he/she will be brought under GPF scheme automatically without further intimation".

Therefore, the applicant having joined the services of Central Government much before the introduction of NPS ought to have been automatically considered under GPF scheme on completion of 20 years of service in the Central Government. The respondents have failed to bring the applicant under GPF scheme in violation of the OM Dated 16.07.2001. Therefore, the impugned orders need to be set aside and his representation ought to be considered for conversion from CPF to GPF scheme.

c) It is pertinent to note that letter dated 06.04.2011 issued by the CSIR clearly lays SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30'

O.A.No.170/00341/2024/CAT/BANGALORE down instructions to the departments of CSIR for conversion from CPF to GPF for scientists appointed prior to 2004 and confirmed w.e.f 28.11.1984 or thereafter should be covered by the Pension Scheme automatically from the date of their confirmation (Annexure 24).

d) It is pertinent to note that the respondent no 3 Director CSIR after conducting thorough inquiry into the representation of the applicant has strongly recommended the case of the applicant for switch over from CPF/NPS to GPF scheme (Annexure A22)."

18. The applicant has mentioned that in CSIR there is a circular dated 06.04.2011 which is filed as Annexure A-24 which, inter-alia, other things mentioned certain possible conversion from CPF to GPF for Scientist who appointed prior to the year 2004 and confirmed w.e.f 28.11.1984 onwards should be covered by the CCS (Pension) Rules, 1972 automatically from the date of their confirmation for the CSIR Laboratory like NAL where now the applicant is working.

19. The case of the applicant is that he was covered under the Contributory Provident Fund scheme prior to his joining NAL and in ISRO, the earlier Organisation, the Contributory SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE Provident Fund scheme envisages automatic conversion after twenty years of service to the CCS (Pension) Rules, 1972 if no options were given and he has not given any option.

20. Further, he says that similarly placed people in CSIR Laboratory, like NAL where he is now working, who were covered under the CPF and were appointed before 01.01.2004, were given similar option of conversion from CPF to GPF automatically vide circular dated 6.4.2011 (Annexure A-24). Hence, only because of the complex opacity of the changed rules, his case has been rejected whereas he is very much eligible and his case is on a similar footing. So, on the grounds agitated, he prays to grant the relief as mentioned in the O.A.

21. In the reply statement and in the objection to the M.A for condonation of delay, the respondents' first and foremost contention is that the conduct of the applicant should be taken into account and his case is barred by limitation because the first time when the applicant had given his application for conversion to GPF from NPS Scheme on 28.5.2020, the respondent no.4 vide O. M dated 13.07.2020, refused to SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE accede to the request of the applicant to switch over from CPF to GPF as he was covered under CPF at ISRO and was governed under NPS w.e.f 14.09.2006 on his joining at CSIR- NAL and that said order of 13.07.2020 was appealable which the applicant has not challenged in time whereas he has come forward with second, third, fourth and lastly fifth application dated 21.07.2022 and when vide O.M dated 05.04.2023, the said fifth representation was rejected, the applicant has made the said rejection as impugned order and has approached this Tribunal. Hence, the limitation in this case started at 13.07.2020 and there was only one year from that date to challenge the said order. If it was not challenged, the respondent asserts that their case was supported by a catena of citations which justified the rejection, and that the O.A is hit by limitation, delays and latches, and it is liable to be dismissed. The applicant had not

filed any Miscellaneous Application for condonation of delay initially and only on the insistence of the Court, after the respondents had objected to the delay, an application was filed for the condoning the delay and the reasons quoted therein are not sufficient to condone the delay SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE and to allow the O. A wherein the applicant seeks condoning an inordinate delay of 1335 days.

22. The applicant was also asked to argue on the point of condonation of delay, and they have insisted that the citations put forth by the respondents are not relevant, as his case is that of a pension whose benefit does not affect anyone else and as per the applicant even the lead case judgment of the Hon'ble Apex Court in Union of India and Another v. Tarsem Singh dated 13.08.2008 in Civil Appeal No.5151-5152 of 2008 before the Hon'ble Supreme Court, the limitation shall not apply to his case because pension is a recurring cause of action and every month after his retirement it affects the applicant as a new cause arises. So the applicant asserts that there is no delay in this case and the applicant prays for condoning the delay and to decide the case on merit.

23. The respondents in their reply statement mostly agree with the facts of the case that the applicant was appointed by the respondent organisation, NAL, on 14.09.2006 in the office of the 3rd respondent, and he had accepted the terms and SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE conditions of the offer of appointment and as per the terms and conditions, the applicant is governed by the New Pension Scheme as he was appointed after 01.01.2004 and only after lapse of more than nearly 14 years from the date of his appointment, the applicant had filed his first representation on 13.07.2020 seeking permission to switch over from CPF to GPF. Now, nearly after 20 years from the date of his appointment, the applicant filed the present Original Application. Therefore, on this ground also, there is inordinate delay in filing the representation and approaching this Tribunal. Hence, the respondents argued that the Original Application is hit by delays and latches.

24. Further, the respondents agreed that the applicant earlier worked with ISRO (respondent no.6) and joined their Organisation (ISRO) on 04.12.2000 vide offer of appointment dated 03.11.2000, and he was covered therein by the CPF Scheme, and at that time an O.M dated 16.07.2001 was issued to the applicant wherein it is clearly mentioned that the applicant was governed under CPF Scheme, and he was given an opportunity to opt to continue in the CPF scheme SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE if he so desires to continue within a period of 20 years of his service. If no option in writing is given, then the applicant will be brought under the GPF Scheme automatically on completion of 20 years of service without further intimation. Thereafter, it is a fact that the applicant, though he had worked in ISRO up to 13.09.2006, did not submit his option either to continue in the CPF Scheme or to switch over to the GPF scheme. Thus, it is very clear that, as on the date of the appointment of the applicant in the office of respondent no.3, the applicant was governed under the CPF scheme in the office of the respondent no.6. Offer of appointment dated 17.08.2006 clearly mentioned in Annexure -1 that the applicant was willing to accept the terms and conditions of the appointment and the applicant may report for duty in the office of the Respondent No.3 within one month from the date of receipt of the said offer letter.

Clause -6 of the said terms and conditions of the offer of appointment reads as follows:

"6.(i) All new entrants will be governed by the "New Pension Scheme" based on defined contribution for new entrants recruited in Central Government Services on or after 1.1.2004 as adopted by CSIR for its employees.

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(ii) As regard persons joining from other Central Govt. Department/Autonomous/ State Govt. Departments to CSIR on or after 1.1.2004 on immediate absorption basis on foreign service terms and after seek absorption and governed by CPF or any other system but not pension scheme on GOI pattern in their parent department, they will be governed by New Pension Scheme.

(iii) However, persons joining an autonomous body on or after 1.1.2004 from other body/PSU/Central Departments/Autonomous Universities having pension scheme on GOI pattern will continue to be governed by existing pension scheme i.e., CCS(Pension) Rules, 1972, subject to discharge of Prorata Pension Liability by the parent department, where the incumbent was working."

As per the said condition, the respondents contend that the applicant is governed by the New Pension Scheme as he was governed under CPF Scheme in the office of the respondent no.6 and clearly his case falls within the purview of para 6(ii) of the above rule. Further, the applicant had accepted the said terms and conditions and reported for duty on 14.09.2006 in the office of respondent no.3 unconditionally. Thus, the respondents assert that it is clear that, from the date of appointment in the office of Respondent No.3 the applicant is SHAINESHAINEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE governed under the New Pension Scheme only, and it is wrong to say that the applicant was forced to cover under NPS scheme without considering his previous service rendered in the office of the respondent no.6. The respondents further assert that the applicant himself filed an application seeking for appointment to the post of Scientist Group (IV)(2) in the office of respondent no.3 and after his selection, an offer of appointment was issued along with the terms and conditions of the appointment as per Annexure R1 as usually issued to all the selected candidates. In the offer of appointment itself, it is clearly mentioned that, if the applicant agrees to accept the said terms and conditions, he may report for duty. As per O.M. dated 26.07.2005, the respondents contend that the applicant is not entitled to claim for counting of his past service in the office of respondent no.6, when the applicant was governed under CPF scheme in the office of respondent no.6, and he was reported to the office of respondent no.3 after 01.01.2004. Therefore, as per the respondents by knowing all these facts fully well, the applicant himself voluntarily applied to the post and he himself voluntarily accepted the terms and conditions of the appointment and SHAINESHAINEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE reported for duty in the office of the respondent no.3 on 14.09.2006 and therefore, he is governed by New Pension Scheme and not by Old Pension Scheme.

25. Respondent Nos.1 to 5 further submitted that, immediately after confirmation of his service, the applicant made an application dated Nil before respondent no.6 requesting to pay the Provident Fund (CPF) in lieu of service rendered in the office of respondent no.6. Thereafter, the office of respondent no.6 sent the said application for taking further action regarding payment vide letters dated 2.10.2007 and 5.10.2007. Thereafter, vide letter dated 03/05.10.2007, the Senior Administrative Officer of the respondent no.6 written a letter to the Senior Accounts Officer of the respondent no.6 requesting to recover the dues before making payment to the applicant. Thereafter, the applicant submitted a letter dated 05.10.2007 to respondent no.3 wherein it is requested to send a letter to the respondent no.6 to settle his terminal benefits to the applicant directly instead of transferring the same to the office of the respondent no.3. Thus, as per the respondents it is clear that the applicant himself voluntarily received his terminal SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE benefits from the office of the respondent no.6 directly and by accepting the same, he closed his options voluntarily and accepted his position that he left the organisation being covered under CPF. Hence, at this juncture he cannot ask for reversion of those and find any parity with anyone either in his old organisation ISRO or any one working in CSIR organisation like NAL where Scientist who had joined service before 1.1.2004 and where under the CPF scheme had been given certain option to convert to the old pension scheme under CCS (pension) Rules, 1972. As per the respondents, the applicant has voluntarily accepted all the conditions of present employment including NPS, and he voluntarily demanded and received all the terminal benefits from the office of respondent no.6 for the service rendered in the said office. Therefore, he is not entitled to switch over from a CPF scheme to a GPF scheme. Hence, at this juncture, he cannot claim to consider his past service rendered in the office of ISRO for the purpose of switching over from the CPF to GPF scheme.

26. Hence, the respondents assert that there is no illegality or infirmity in issuing the endorsement by the respondent SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE department. Hence, the respondents argue that due to limitations as well as on merit, the Original Application should be dismissed.

27. On careful examination of the facts of this case, the following important facts are pertinent to examine this case vis- à-vis the rival contentions:

That the applicant was originally appointed by a Government of India Organization (at ISRO) as a Scientist on 03.11.2000. Initially he was in the CPF Scheme, but from Annexure A-3, which is not disputed, it is clear that his CPF Scheme was a conditional scheme which inter-alia other things mentioned the following:

" OFFICE MEMORANDUM Sub: Exercise of Option Switchover to GPF and Pension Scheme from CPF in respect of Scientific and Technical Personnel Regarding.

A copy of OM No.2/10(2)/87-1(Vol.V) dated 30.05.1997 is enclosed Since Shri Mulajagadesh. E 14207 is still governed under CPF scheme, the contents of the OM are brought to his notice for appropriate action in the matter. In case SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30'

O.A.No.170/00341/2024/CAT/BANGALORE he/she desires to retain CPF Scheme, he/she may submit his/her specific option for retaining CPF Scheme at any time but not later than completion of 20 years of his/her service to this office through proper channel. If no option in writing to retain CPF Scheme is received in Administration as above he/she will be brought under GPF scheme automatically on completion of 20 years of service without further intimation.

Receipt of this memorandum may please be acknowledged in the format enclosed."

28. Simple reading of the above shows that the applicant was not covered by any fixed and rigid CPF Scheme, but he was covered by a conditional CPF Scheme as per the O.M which was dated July 16, 2001 No.SCF:PGA:ESTT-III:1.16 with the subject, "Exercise of option - Switchover to GPF and Pension Scheme from CPF in respect of Scientific and Technical Personnel - Regarding." It is a fact that the applicant never exercised any option either to be in CPF or in GPF. As the scheme of things existing in ISRO at that point of time, everyone joining was covered under the CPF Scheme initially and the said Office Memorandum gave the option that the applicant may submit his specific choice for retaining the CPF Scheme at any time, but not later than completion of 20 years of his/her service SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE in ISRO. It was further made clear that if there was no option in writing to retain CPF Scheme he/she will be brought under GPF Scheme automatically on completion of 20 years of service without further intimation. Hence, the scheme which covered the applicant envisaged automatic conversion to GPF as a default option if no option was given in writing in the first twenty years of the service. Unfortunately, in the case of the applicant, he left the Organisation before 20 years completion, as his technical resignation on a permanent absorption basis was accepted on 21.08.2006, and he was relieved from ISRO on 13. 09.2006 and on the subsequent next date on 14.09.2006, he joined the organisation (NAL) of his present employer respondent no.3 NAL.

29. It is a fact that he has obtained an NOC from his earlier employer, ISRO, and, through due process, he was appointed by his new employer NAL, and an offer of appointment was issued to him on 17.08.2006; pursuant to which he joined NAL on 14.09.2006 and his probation was confirmed by 28.01.2007. Now one of the prime questions for our consideration before us would be, "If the applicant had not exercised the choice (for CPF SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE or GPF) on or before 13.09.2006 while leaving the first Organisation due to lack of clarity on the changing pension rules which were still nascent in the year 2006, what was the true nature of his pension status (whether CPF or GPF)? And does his acceptance of the institutional interpretation that he was covered by the CPF only, whether it completely destroys the case of the applicant as contended by the respondents?"

As it is now manifestly clear that the understanding and ramification of all the rules on CPF/GPF/CCA Pension Scheme etc and the clarified on there from time to time by DoP&T/Ministry of Finance etc. and also the long catena of rulings on the subject were available before the employee as is evident from the better understanding on the

subject which emerged much later. In the absence of later clarifications and elaborations as have been filed by various parties including the respondents at Annexure R-11, an O.M of Government of India, Ministry of Finance, Department of Expenditure dated 13.11.2003, No.1(13)/EV/2001 with the subject, "Applicability of New Pension Scheme to the employees of Autonomous Bodies/PSUs under various Central Ministries/Departments";

SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE Annexure R-12 Notification of Ministry of Finance dated 22.12.2003, F.No.5/7/2003-ECB & PR, Annexure R-13 No.17/68/2001-E-II dated 23.12.2003 and Annexure R-14 dated 18.05.2004 with the subject, "Introduction of New Pension Scheme in CSIR", Annexure R-15 dated 10.06.2004 with subject, "Applicability of New Pension Scheme to new entrants recruited in service on or after 1.1.2004 - clarification thereof", Annexure R-16 O.M dated 29.08.1984 with the subject, "Mobility of personnel between Central Government Departments and Autonomous Bodies - Counting of service for pension", Annexure R-17 O.M of the Ministry of Personnel, Public Grievances and Pensions No.28/30/2004-P&PW (B) dated 26.07.2005 on the subject, "Counting of past service on submission of technical resignation on or after 1.1.2004 by employees governed by Central Civil Services (Pension) Rules, 1972", Annexure R-18 O.M of the Ministry of Personnel, Public Grievances and Pension No.28/30/2004-P&PW(B) dated 28th October 2009 with the subject, "Mobility of personnel amongst Central/State & Autonomous Bodies while working under Pensionable establishments - regarding" and SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE DoP&T O.M dated 11.06.2020, No.28/30/2004-P & PW(B) with the subject, "Mobility of personnel amongst Central/State & Autonomous Bodies while working under Pensionable establishments - regarding, and various citation as we shall discuss subsequently".

30. It may be a fact that in the offer of appointment from the second employer, NAL, dated 17.08.2006, the terms of conditions of appointment were clearly mentioned and, at that point of time unconditionally the applicant had accepted the same, and he knew that he was being covered under NPS as a new entrant in NAL after 01.01.2004 and that his earlier services as under CPF was not being considered. Subsequently, on the applicant's volition, his earlier employer, ISRO, settled his CPF contribution and gave him all his due amounts on 05.11.2007 without transferring the same to the new Organisation NAL. It is clear that he had joined the new organisation after 01.01.2004 after the introduction of New Pension Scheme on 22.12.2003. Further it is also a fact that in his new employment at NAL vide O.M dated 27.08.2013 (Annexure A-13) the applicant was SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE provided pay protection based on his earlier work experience as inter-alia other things it mentions:

"OFFICE MEMORANDUM Sub: Revision of Pay & Pay Protection of Shri. Jagadeesh M, Scientist IV(2), C-CADD.

The Competent Authority, National Aerospace Laboratories has been pleased to sanction revision of pay in r/o Shri. Jagadeesh M, Scientist IV(2), Emp No:53573, C-CADD who had joined NAL through proper channel from ISRO on 14.09.2006 as Scientist IV (2) in the pay scale of 10,000-325-15,200. The revision of pay is as shown in the table below:"

Simple reading of the above shows that the applicant's earlier service at ISRO was duly recognized, and his pay was protected. Further, the contents of Annexure A-24 with the subject, "Instructions to switchover from CPF Scheme to Pension Scheme - reg." are not denied. The order of CSIR which is applicable to the applicant's present employer, NAL dated 6.04.2011, No.5-1(58)/2008-PD, wherein, inter-alia, other things it mentions that:

"Sub: Instructions to switchover from CPF Scheme to Pension Scheme - reg.

Sir.

SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE A majority of Scientists working in Group IV in CSIR system are by and large covered by GPF Scheme. There is still a small group of Scientists that continue to be governed by CPF Scheme. From time to time, instructions were issued to enable them to switch over to GPF Scheme. These instructions were applicable to Scientists who have been confirmed as Scientists in Group IV. Some of these Scientists could not opt for GPF as they were not made permanent before the last date of option for switching over from CPF to GPF.

DG, CSIR has been receiving representations from such Scientists requesting for another option be given to them to switch over from CPF to GPF. In order to resolve the issue once for all, DG, CSIR constituted a Committee under the chairmanship of Dr. Chandra Shekhar, Director, CEERI, Pilani to examine and make holistic recommendations to settle the issue once for all.

After critical examination of all the relevant material and instructions issued on the subject from time to time, information made available by Labs./Instts, and detailed discussion, the Committee came to the conclusion that there are Scientists who continue to be governed by the CPF Scheme as either they had opted for CPF or for various reasons could not exercise any option. With the examination of the instructions on the subject, the Committee converged to the view that Scientists confirmed w.e.f 28.11.1984 or thereafter should be covered by the Pension Scheme SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE automatically from the date of their confirmation.

The DG, CSIR in consultation with FA, CSIR and Legal Advisor, CSIR approved the recommendations of the Committee as under:

1. Options sought from Scientists vide CSIR circular letters No. 17(197)/90-E.II dated 14.5.1991 and 25/01/99 to move from CPF to GPF should apply only with reference to the contractual period (served prior to the date of confirmation).
2. All Scientists who were appointed before 01/01/2004 (when the New Pension Scheme came in vogue) and confirmed w.e.f 28/11/1984 or thereafter should be covered by the Pension Scheme automatically from the date of their confirmation.
3. Option exercised by Scientists in 1991 or 1999 should be applicable only in respect of the period of service rendered under the contract prior to their confirmation.
4. Those Scientists who have not exercised any option till date will be deemed to have opted for CPF for the period of service rendered under contract prior to their confirmation in accordance with the CCS(Pension) Rules, 1972.

The above instructions to switchover from CPF to Pension Scheme may kindly be implemented with immediate effect."

Simple reading of the above shows that some of the scientists who were employed by the CSIR Lab, like NAL, were SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE covered by the CPF Scheme initially. The DG, CSIR had approved the recommendations of the committee that all scientists who were appointed before 01.01.2004 , when the New Pension Scheme came into vogue and confirmed w.e.f 28.11.1984 or thereafter, should be covered by the Pension Scheme automatically from the date of their confirmation. Paragraph 4 expressly mentioned that those Scientists who have not exercised any option till date will be deemed to have opted for CPF for the period of service rendered under contract prior to their confirmation in accordance with the CCS(Pension) Rules, 1972. Clearly, it also said that if the Scientist continued to be covered by the CPF Scheme either they had opted for CPF or for various reasons could not exercise any option, CSIR Committee was of the view that the Scientist confirmed with effect from 28.11.1984 or thereafter should be covered by the pension scheme automatically from the date of their confirmation. This rule shows that had the applicant been in employment at NAL from the very first day when he joined ISRO on 03.11.2000 and was covered under CPF, then he had the option to convert to GPF and come to the CCS (Pension) SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE Rules, 1972 whereas only because he changed his organisation from ISRO to NAL he missed the said opportunity.

31. Respondent nos.1 to 5 have relied on the following judgments:

1. 2023 SCC OnLine Del 7921 Prof. Neeraj Khare -Vs- Indian Institute of Technology and others.

2. Order dated 20.03.2023 passed in W.P.(C) 1125/2022 & CM Appl 12727/2023 by the Hon'ble High Court of New Delhi in Prof. Neeraj Khare -Vs- Indian Institute of Technology and others.

3. Order dated 27.09.2023 passed in O.A.No.240/2022 by this Court in Dr. Shashi Bhushan Verma -Vs- U.O.I. and Others.

4. 2022 LiveLaw (SC) 232 Surjeet Singh Sahni -Vs- State of U.P. and Others

5. Order dated 08.04.2024 passed in S.L.P (Civil) No. 31248/2018 in Pathapati Subba Reddy (Dead) by LRs and Others -Vs-The Special Deputy Collector (LA) 6 Order dated 13.05.2025 passed in S.L.P (Civil) No. 17575/2023 in Thirunagalingam

-Vs- Lingeswaran and Another

32. The applicant has relied on the following judgments:

1. The decision of the Hon'ble Supreme Court in Special Leave to Appeal (S) SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE No.14126/2024 dated 15.07.2024 in The Commissioner, Kendriya Vidyalaya Sangathan v. Vasanthi Krishnan & Ors.,

2. The decision of this Tribunal O.A No.170/00989 of 2019 dated 25.01.2023

3. The decision of the Hon'ble Apex Court in Civil Appeal No..... of 2022 in University of Delhi v. Smt.Shashi Kiran and Others ((2022) 15 SCC 325)

4. Dr.Kishore K.John vs Union of India on 23 April, 2021 W.P.No.11015 of 2020 Before the High Court of Judicature at Madras

5. Union Of India & Anr vs Tarsem Singh on 13 August, 2008 CIVIL APPEAL NO.5151-5152 OF 2008 Before the Supreme Court of India

6. Chhaya Bhattacharaya Vs The State of West Bengal and Ors in WP. No. 18652 of 2015 before the High Court at Calcutta

7. Gurmail Kaur Vs The commissioner, Kendriya Vidyalaya Sangathan and Anr in OA. No 153 OF 2019 before The Central Administrative Tribunal Jaipur bench.

8. Dr. S Backiyarani vs Indian council of Agricultural on 19 June, 2023 in OA. No. 310/00385/2022 before The Central Administrative Tribunal Chennai Bench

9. Amijuddin Ahmed and Ors Vs State of West Bengal & Ors in WP.No 3996 of 2005 before the High Court at Calcutta SHAINESHAINNEY VIJU CAT Bangalore Y VIJU

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10. R.Renukadevi vs The Commissioner on 5 January, 2017 in W.P.No.25354 of 2015 before the High Court of Judicature at Madras

11. Dr. R.N Virmani And Ors. v.

University Of Delhi And Anr. S in WP (C) 1490/2006 before The Delhi High Court

12. Union Of India And Another v. S.L Verma And Others in Civil Appeal No. 2723 of 2005 before The Supreme Court Of India

33. From the facts of the case and rival contentions, the following issues come for our consideration:-

Q.1. Whether the delay can be condoned in this particular case?

Q.2. Whether the applicant was covered under the CPF or GPF scheme on the date of his technical resignation on a permanent absorption basis was accepted on 21.08.2006, and he was relieved from ISRO on 13.09.2006?

Q.3. On the acceptance of CPF contribution on 05.11.2007, does the applicant foreclosed his options to be considered as within the purview of the GPF Scheme ?

SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE Q.4. If so, what orders?

34. Q.1. Whether delay can be condoned in this particular case?

Ans. First, let us examine the contention of the respondents about the delay and latches in this Original Application as has been contended and also as a matter of fact that the applicant had given his first application for conversion to GPF from NPS on 28.05.2020 only, which was 14 years after his technical resignation and absorption in the new organization, NAL, in the year 2006, and it was almost 13 years after he accepted the contribution from his CPF amount from his previous employer ISRO in the year 2007. Further, the said application was rejected by the respondent no.4 vide O.M dated 13.07.2020 refusing to accept the request of the applicant to switch-over from the CPF Scheme to the GPF Scheme.

The respondents contend that, after that, giving five subsequent successive applications were redundant, and his limitation shall apply from the first date of rejection on SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE 13.07.2020, and also it shall apply from the date of his technical resignation when he foreclosed all his options and he should have challenged about his status whether he was covered under CPF or GPF or if he had any further option to change his status from CPF to GPF at that point of time.

These facts are not denied, and it may look that there is some delay on the part of the applicant to agitate his case for old pension scheme/GPF scheme with several representations and lastly by filing this O.A. In support of their case, the respondents have cited several case laws. First of which is Surjeet Singh Sahni v. State of U.P and Others reported in 2022 Live Law (SC) 232 wherein the Hon'ble Apex Court observed in paragraph 5 that:

"5. As observed by this Court in catena of decisions, mere representation does not extend the period of limitation and the aggrieved person has to approach the Court expeditiously and within reasonable time. If it is found that the writ petitioner is guilty of delay and latches, the High Court should dismiss it at the threshold and ought not to dispose of the writ petition by relegating the writ petitioner to file a representation and/or directing the authority to decide the representation, once it is found that the original writ petitioner is guilty of delay and latches. Such order shall not give an opportunity to the petitioner to thereafter contend that rejection of the representation SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE subsequently has given a fresh cause of action."

We have gone through the facts of the said case, and it is seen that the said case is about disputes over the sale of a plot and delays associated with that, and we are of the considered view that the sale of a plot case cannot be equated and compared with the case of pension, which is on a different footing. Hence, this citation has no relevance to the case in hand.

Further, the respondents have cited the decision of the Hon'ble Supreme Court in Pathapati Subba Reddy (Died) by L.Rs and Ors. v. The Special Deputy Collector (LA) in Special Leave Petition (Civil) No.31248 of 2018. Inter-alia other things, the Hon'ble Apex Court has observed the following:

"31. Learned counsel for the petitioners next submitted on the basis of additional documents that in connection with the land acquisition in some other Special Leave Petitions, delay was condoned taking a lenient view and the compensation was enhanced with the rider that the claimants shall not be entitled for statutory benefits for the period of delay in approaching this Court or the High Court. The said orders do not clearly spell out the facts and the reasons explaining the delay in filing the appeal(s) but the fact remains that the delay was condoned by taking too liberal an approach SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE and putting conditions which have not been approved of by this Court itself. In the absence of the facts for getting the delay condoned in the referred cases, vis-à-vis, the facts of this case, it cannot be said that the facts or the reasons of getting the delay condoned are identical or similar. Therefore, we are unable to exercise our discretionary power of condoning the delay in filing the appeal on parity with the above order(s).

32. Moreover, the High Court, in the facts of this case, has not found it fit to exercise its discretionary jurisdiction of condoning the delay. There is no occasion for us to

interfere with the discretion so exercised by the High Court for the reasons recorded. First, the claimants were negligent in pursuing the reference and then in filing the proposed appeal. Secondly, most of the claimants have accepted the decision of the reference court. Thirdly, in the event the petitioners have not been substituted and made party to the reference before its decision, they could have applied for procedural review which they never did. Thus, there is apparently no due diligence on their part in pursuing the matter. Accordingly, in our opinion, High Court is justified in refusing to condone the delay in filing the appeal.

33. In the above situation, we do not deem it proper and necessary to interfere with the decision of the High Court refusing to condone the inordinate delay in filing the proposed appeal.

34. The Special Leave Petition, as such, lacks merit and is dismissed."

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O.A.No.170/00341/2024/CAT/BANGALORE We have gone through the said case. The said case relates to the land acquisition matter and the delay associated with the same. We are of the considered view that the present case of the applicant is related to pension, which cannot be equated and compared with the land acquisition matter. Hence, the citation may not have direct bearing on the case of the applicant.

Further, the respondents have cited the order dated 13.05.2025 of the Hon'ble Apex Court in Civil Appeal No.6843/2024 arising out of SLP(C) No.17575 of 2023 in Thirunagalingam v. Lingeswaran and Anr., wherein the Hon'ble apex court observed the following:

"30. In the present appeal, the Respondents seek to raise the very same reason to condone the delay as were previously canvassed, without placing any fresh or additional material to distinguish the current reason from the one already discussed and dismissed. This Court is of the considered view that such a repetition of grounds already scrutinized and held untenable amounts to an abuse of the process of law. Although the applications for condonation of delay are filed under different provisions of the law but the said provisions provide for concurrent remedies through different mechanisms and if the application filed under one provision has already been dismissed by a court of competent jurisdiction, by applying SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30'
O.A.No.170/00341/2024/CAT/BANGALORE its judicial mind and held that the reasons for delay were not sufficient, a subsequent application filed under different provision, reiterating the same contentions or grounds of delay, cannot be entertained.

31. It is a well-settled law that while considering the plea for condonation of delay, the first and foremost duty of the court is to first ascertain the bona fides of the explanation offered by the party seeking condonation rather than starting with the

merits of the main matter. Only when sufficient cause or reasons given for the delay by the litigant and the opposition of the other side is equally balanced or stand on equal footing, the court may consider the merits of the main matter for the purpose of condoning the delay.

32. Further, this Court has repeatedly emphasised in several cases that delay should not be condoned merely as an act of generosity. The pursuit of substantial justice must not come at the cost of causing prejudice to the opposing party. In the present case, the respondents/defendants have failed to demonstrate reasonable grounds of delay in pursuing the matter, and this crucial requirement for condoning the delay remains unmet.

33. Therefore, in the case at hand, once it has been established that the reasons provided for condoning the delay in the application filed are not sufficient, we are not inclined to go into the merits of the contentions raised by the learned counsel of Respondents regarding Section 14 of the Limitation Act, 1963.

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34. In view of the aforesaid facts and circumstances, this Court is of the considered opinion that the Impugned Order dated 25.04.2023 passed by the High Court is liable to be set aside and is, accordingly, set aside.

35. The appeal stands allowed."

We have gone through the said judgment also and the subject matter relates to sale agreement and the delay associated with that and the subject matter in the above mentioned case is very different from pension which is not only a recurrent and continuing cause, but an unusual right of old age social security. Hence, in our considered opinion, this case law has no bearing on the case of the applicant.

Further, the respondents have cited the Single Bench decision of the Hon'ble High Court of Delhi in the case of Prof.Neeraj Khare v. Indian Institute of Technology, Delhi and Others passed by the learned Single Judge on 20.10.2023 in W.P (C) 1125/2022 and C. M Appeal No.12727/2023 wherein a similar case as that of the applicant has been agitated before the Delhi High Court. The said petition has been filed aggrieved by the respondents' action for denying switch over from the CPF SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE scheme to the GPF scheme, wherein the Hon'ble Court has held that:

"CONCLUSION

75. In terms of the facts of the case, it is evident that the petitioner has on several occasions opted for the CPF scheme even when he was well covered under different schemes. It has been well settled that pension is not a matter of charity, it is not a "bounty"

or a "gratuitous" payment but is a way to compensate the individual and their family for the years of service that has been rendered by them. In the present case, the petitioner has chosen to enjoy the benefits of the CPF scheme and subsequently, as an afterthought wished to switchover to the GPF scheme. The same cannot be permitted by this Court as the documents on record make it evident that the petitioner has opted for the CPF scheme on multiple occasions and as he is nearing the age of superannuation, he has chosen to exercise his option to switchover to the GPF scheme, at a belated stage.

76. This Court is therefore of the view that the petitioner seems to have exercised this option to switchover at a belated stage, and the same cannot be entertained by this Court primarily because there lies a prescribed time period, beyond which such option could not have been exercised by the petitioner.

77. In view of the above, this Court does not find it fit to issue a writ of mandamus or any other writ, as the petitioner's case lack merit on the grounds that he has belatedly chosen to opt for the GPF scheme and subsequently, SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE he has been unable to satisfy this Court of the same.

78. In view thereof, the present petition stands disposed of.

79. Pending applications, if any, also stand dismissed.

80. The judgment be uploaded on the website forthwith."

As the case of the applicant also belonging to a pensionary dispute, this case has some bearing on the case of the applicant in this O.A. In the said judgment, the petitioner had relied on the judgment passed by the apex court in Smt.Shashi Kiran and others v. Union of India and Others reported in 2016 SCC Online Del 4819, to substantiate his argument and by way of the said case, it was said that the High Court has held that the denial of option to switch over to pension scheme is arbitrary and discriminatory in nature. It is not evident from the body of judgment if the Hon'ble High Court was presented with the order of the Hon'ble Apex Court judgment on 10.05.2022 in the same set of cases which are referred as University of Delhi v. Shashi Kiran and Others, reported in 2022 15 SCC 325, wherein Shashi Kiran and others batch of cases were finally upheld by the SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE Hon'ble Apex Court with more reasoning. We will subsequently examine this subject further.

Further, the respondents have cited the Division Bench order of the Hon'ble High Court of Delhi on 28.11.2023 in Prof. Neeraj Khare v. IIT and Others reported in 2023 SCC Online Del 7921 wherein

the case was decided based on precedence in the case of *Rabindranath Bose v. Union of India* (1970 1 SCC 84: AIR 1970 SC 470) wherein it was observed that:

"44. in the case of *Rabindranath Bose v. Union of India* (1970 1 SCC 84: AIR 1970 SC 470) in spite of the fact that the Government rejected a representation and communicated such rejection to the applicant therein, his subsequent representations were entertained by the government. A Constitution Bench of this Court held as under :

"34.... He says that the representations were being received by the Government all the time. But there is a limit to the time which can be considered reasonable for making representations. If the Government has turned down one representation, the making of another representation on similar lines would not enable the petitioners to explain the delay."

(emphasis added) SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE In *State of Orissa v. Pyarimohan Samantaray* [(1977) 3 SCC 396 : 1977 SCC (L&S) 424:

AIR 1976 SC 2617], *State of Orissa v. Arun Kumar Patnaik* [(1976) 3 SCC 579: 1976 SCC (L&S) 468: AIR 1976 SC 1639] and *Swatantar Singh v. State of Haryana* [(1997) 4 SCC 14: 1997 SCC (L&S) 909: AIR 1997 SC 2105], a similar view has been reiterated."

37. In view of the detailed discussion hereinabove, the present appeal is found without any merit. The same is accordingly dismissed"

We have examined these orders with reference to the Hon'ble Supreme Court order in the 'R N Virmani' batch of cases (supra) in the lead case of "*University of Delhi vs. Smt. Shashi Kiran and others etc*", and we find the case before us being a close variant of "*Virmani batch of cases*", and was covered by the same and hence for the reasons explained therein we are of the view to condone the delay accordingly as we have discussed subsequently.

Per contra, the applicant has relied on two cases for claiming condonation of delay.

i. The leading case of the Hon'ble Apex Court in *Union of India and Others v. Tarsem Singh* in Civil Appeal No.515-5152 SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE of 2008 on 13.08.2008 wherein the Hon'ble Apex Court ruled the following:

"5. To summarise, normally, a belated service related claim will be rejected on the ground of delay and laches (where remedy is sought by filing a writ petition) or limitation (where remedy is sought by an application to the Administrative Tribunal).

One of the exceptions to the said rule is cases relating to a continuing wrong. Where a service related claim is based on a continuing wrong, relief can be granted even if there is a long delay in seeking remedy, with reference to the date on which the continuing wrong commenced, if such continuing wrong creates a continuing source of injury. But there is an exception to the exception. If the grievance is in respect of any order or administrative decision which related to or affected several others also, and if the re-opening of the issue would affect the settled rights of third parties, then the claim will not be entertained. For example, if the issue relates to payment or re-fixation of pay or pension, relief may be granted in spite of delay as it does not affect the rights of third parties. But if the claim involved issues relating to seniority or promotion etc., affecting others, delay would render the claim stale and doctrine of laches/limitation will be applied. In so far as the consequential relief of recovery of arrears for a past period, the principles relating to recurring/successive wrongs will apply. As a consequence, High Courts will restrict the consequential relief relating to arrears normally to a period of SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE three years prior to the date of filing of the writ petition.

6. In this case, the delay of 16 years would affect the consequential claim for arrears. The High Court was not justified in directing payment of arrears relating to 16 years, and that too with interest. It ought to have restricted the relief relating to arrears to only three years before the date of writ petition, or from the date of demand to date of writ petition, whichever was lesser. It ought not to have granted interest on arrears in such circumstances.

7. In view of the above, these appeals are allowed. The order of the Division Bench directing payment of disability pension from the date it fell due, is set aside. As a consequence, the order of the learned Single Judge is restored."

The applicant emphasizes that his grievances are related to his pensionary benefits and any order or administrative decision relating to that only affects him and does not affect several others, and it will not open the settled rights of third parties and as the example is clearly given therein in the said Hon'ble Apex Court order, if the issue relates to payment or re-fixation of pay or pension, relief might be granted in spite of delay as it does not affect the rights of third parties.

SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE Further, the applicant has relied on the decision of the Hon'ble Supreme Court in Civil appeal Number of 2022 arising out of Diary No.13901 of 2017 in the case of University of Delhi v. Smt.Shashi Kiran and Others etc reported in 2022 15 SCC 325 wherein Tarsem Singh's judgment had been relied on for condonation of delay and it is mentioned that:

7. These decisions in all three batches of cases were appealed against by the University before the Division Bench, which dealt with each of these batches as

under:-

A) R.N. Virmani batch of cases:

"17. This court is of opinion that the submissions of the University, the appellant, in regard to the Virmani's order, have no force. There is no denial and there can be none- that the nature of the scheme contemplated by the 01.05.1987 notification was to ensure that only those wishing to continue in the CPF scheme had to opt to do so. A default in that regard, meant that the employee not filling his option (to continue in CPF) was deemed to have "come over" or migrated to the Pension Scheme. The University and the official respondents (UGC, Central Government etc) had urged that the petitioners in the Virmani group are deemed to have accepted the CPF benefits, because they allowed deductions from their monthly salaries during the interregnum and permitting Pension Scheme benefits would not be fair; in the same breath it was urged that there was delay. This court is of opinion SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE that the University - and the respondents are relying on contradictory pleas. If they urge that the true interpretation of the 1987 circular meant that anyone not furnishing an option to continue in the CPF scheme is deemed to have opted for the Pension Scheme (as the Virmani group undoubtedly did) there is no way they can succeed on the ground of laches or estoppel. If plain grammatical meaning of the language of the May 1987 OM were to be given, all those who do not opt would automatically be borne in the Pension Scheme. Such being the position, the argument that the petitioners in Virmani allowed deduction of CPF amounts from their salary, cannot be argued against them.

CPF schemes typically require employees to commit greater amounts than in GPF scheme, on a monthly basis. That these staff members allowed higher amounts, which were held under a scheme (and which earned interest), the benefit of which had not accrued and was not available to them till the date of superannuation, cannot be urged against them. Likewise, the question of laches would not arise, because at the most, pension would not be allowed for the entire period, given that in matters of pension (see Union of India & Ors. V. Tarsem Singh (2008) 8 SCC

648) there is a continuing cause of action. Therefore, we find no infirmity with the learned Single Judge's order, in Virmani's case." The appeals were thus dismissed. SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE We would like to re-emphasize that under the heading "R.N.Virmani batch of cases" wherein inter-alia other things it is mentioned that:

"Likewise, the question of laches would not arise, because at the most, pension would not be allowed for the entire period, given that in matters of pension (see Union of India & Ors. v. Tarsem Singh (2008) 8 SCC 648) there is a continuing cause of action. Therefore, we find no infirmity with the learned Single Judge's order in

Virmani's case."

And we find that the case of the applicant before us is a close variant of the "R.N. Virmani" batch of cases and should get the same treatment and benefits. As is clear from the Apex Court order the "R.N. Virmani" group of cases were the most straight forward one, among the three batches of cases referred above. The said arguments and consequent decisions from the Single Bench to the Division Bench of the Hon'ble High Court of Delhi was confirmed by the Hon'ble Supreme Court vide order dated 10.05.2022 verbatimly reproducing the said orders. These cases (particularly Virmani batch of cases) have close similarity to the facts and issues with the case in hand before this Tribunal, and we have carefully gone through the citation of the respondents in Prof. Neeraj Khare v. IIT Delhi and Ors reported in 2023 SCC SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE Online Del 7921 vide their order dated 28.11.2023, although they have not given benefit on continuing cause of pension cases and condoning the delay, but from the body of the order it is clear that the Hon'ble Apex Court order in Tarsem Singh case supra as well as the citation referred by the applicant in University of Delhi v. Shashi Kiran and Ors etc. disposed of vide order dated 10.05.2022 has not been brought to the notice of the Division Bench of the Hon'ble High Court of Delhi. Further we would like to make it clear that the case of the present Applicant is a close variant of the "R.N. Virmani" group of cases where as the case in the Professor Neeraj Khare vs. IIT Delhi and others was a close variant of "Shashi Kiran Batch" of cases, hence the cited case of Prof. Neeraj Khare may be not comparable or relevant for considering limitation in the present case. Hence, we are of the considered opinion that this is the right case in favour of the applicant to condone the delay and consider the case of the applicant on merit and, accordingly, we allow the M.A 350/2024 and condone the delay in filing the O.A.

35. Q.2. Whether the applicant was covered under the CPF or GPF scheme on the date of his technical resignation on a SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE permanent absorption basis was accepted on 21.08.2006, and he was relieved from ISRO on 13.09.2006?

Ans.: It is a matter of fact that none of the facts as earlier discussed have been contested by either of the parties to consider this question. We will have to go back and examine the applicant's nature of the pension programme in his earlier organisation in ISRO which is evident from Annexure A-3 of the O.A which is an O.M. No.SCF:PGA:ESTT-111:1.16 dated 16.7.2001 which reads the following:

"Sub: Exercise of Option Switchover to GPF and Pension Scheme from CPF in respect of Scientific and Technical Personnel Regarding.

A copy of OM No.2/10(2)/87-1(Vol.V) dated 30.05.1997 is enclosed Since Shri.Mulajagadesh. E 14207 is still governed under CPF scheme, the contents of the OM are brought to his notice for appropriate action in the matter. In case he/she desires to retain CPF Scheme, he/she may submit his/her specific option for retaining CPF Scheme at any time but not later than completion of 20 years of his/her service to this office through proper channel. If no option in writing to retain

CPF Scheme is received in Administration as above he/she will be brought under GPF scheme automatically on completion of 20 years of service without further intimation.

SHAINESHAINEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30'
O.A.No.170/00341/2024/CAT/BANGALORE Receipt of this memorandum may please be acknowledged in the format enclosed."

It is a matter of fact that this document is not disputed, and its contents are also not disputed. Furthermore, a detailed scheme is not forthcoming as the relevant Master OM's are not made available by either party, but this OM issued specifically to the applicant gives complete insight about the pension scheme prevalent in ISRO at that point of time when the applicant was appointed therein. It is not disputed that the applicant was appointed much before the notification of the new pension programme with effect from 1.1.2004. A closer look of the O. M in No. O. M No.SCF:PGA:ESTT-111:1.16 dated 16.7.2001, discloses the following four distinct part in the said OM:

1. Shri.Mulajagadesh. E 14207 is still governed under CPF scheme,
2. The contents of the OM No.2/10(2)/87-1(Vol.V) dated 30.05.1997 are enclosed and brought to his notice for appropriate action in the matter.

SHAINESHAINEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30'
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3. In case if he/she desires to retain CPF Scheme, he/she may submit his/her specific option for retaining CPF Scheme at any time but not later than completion of 20 years of his/her service to this office through proper channel.
4. If no option in writing to retain CPF Scheme is received in Administration as above he/she will be brought under GPF scheme automatically on completion of 20 years of service without further intimation.

The third paragraph of this O. M is very pertinent, which emphatically points out that the pension policy required that, in case any employee desired to retain the CPF Scheme, he had to submit a specific option for retaining the CPF scheme any time but not later than completion of 20 years. So there was a requirement for positive action and affirmative action that one has chosen the CPF scheme. As a matter of fact, it is not disputed by the respondents that, at any point of time, the applicant had chosen the CPF scheme. No such choice has ever been exercised. Hence, this part of the covenant in this O.M. dated 16.07.2001 was never fulfilled.

SHAINESHAINEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30'
O.A.No.170/00341/2024/CAT/BANGALORE Further contradistinctly, the fourth paragraph of the O. M said that, "if no option in writing to retain the CPF Scheme is received in Administration as

above, the said employee will be brought under the GPF scheme automatically on completion of 20 years of service without further intimation." That meant, that in ISRO the GPF was the default option in cases where no choice was expressly given by the employee, the said employee has to be considered as a member of the GPF scheme. In the case of the applicant, he has not been given any choice. He was not even asked by the organization (ISRO) to give a choice at the time of his severance from the first employer, ISRO, in 2006. It is not disputed that the applicant had never given a choice to join CPF.

Now that he had not given a choice, as explained in the "R.N. Virmani" batch of cases (supra) before the Hon'ble Supreme Court, we are of the considered opinion that the default option kicked in the case of the applicant immediately on his severance or cessation of his employment from the first employer without expressly opting for CPF; if that instance happened earlier than 20 years, as a legal fiction. Because the default pension programme was GPF and not CPF. No one was required SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE to give any option for joining GPF, that whereas third part of the said O. M clearly says that a positive and definitive action of desire to retain CPF in the form of an option had to be exercised any time upto 20 years from the date of appointment, which option has not been exercised by the applicant ever.

However, one will have to explain the meaning and purport of the first part of the said OM, which mentioned, "Shri Mula Jagadeesh E 14207 is still governed under CPF Scheme"?

Let us examine this case with reference to the case cited by the applicant, the decision of the Hon'ble Supreme Court dated 10.05.2022 in Civil appeal Number of 2022 arising out of Diary No.13901 of 2017 in the case of University of Delhi v. Smt.Shashi Kiran and Others etc. reported in 2022 15 SCC 325 wherein the delay was condoned, and the relief was upheld by the Hon'ble Apex Court dismissing the appeals filed by the University of Delhi against the judgment passed by the Division Bench of the Hon'ble High Court of Delhi where in turn was challenged the decisions of the learned Single Judge of the Hon'ble High Court of Delhi dated 30.04.2014 in various Writ Petitions. In the said case all the Writ Petitioners were members SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE of the teaching staff working in various colleges and institutions which are either affiliated to or are part of the university. The conditions of service of the teaching staff were somewhat analogous to the employees of the Central Government. On 6.6.1985, Central Government employees who were governed by the Contributory Provident Fund (for short, CPF) were permitted to opt for the General Provident Fund and pension scheme (for short, GPF). Thereafter, a notification was issued by the Central Government with respect to the changeover of the employees from CPF to GPF. Said notification issued on 1.5.1987 contemplated that all CPF beneficiaries who were in service on 01.01.1986 and were still in service would be deemed to have "come over" to GPF unless a contrary option was exercised by them in writing by 30.09.1987 to continue to be under CPF. By a cut-off date, that is to say by 30.09.1987, 2611 employees of the University had opted to continue under CPF while the rest of the employees, by virtue of deeming provision of the concerned notification referred to above, were deemed to have "come over"

to GPF. However, the University kept granting extensions for exercise of option to remain under CPF. First two extensions SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE were, thus, granted vide communications dated 5.10.1987 and 21.01.1988 for exercising the option to remain under CPF. About 626 employees exercised such option to continue under CPF during two extensions granted by the University. Thereafter, 11 further options were granted by the University where under there could be a possible reverse switchover from CPF to GPF. These options were granted vide Notification dated 9.2.1989, 4.6.1989, 17.9.1989, 12.07.1991, 20.12.1991, 16.07.1993, 12.07.1994, 15.03.1996, 09.01.1998, 04.03.1998 and 16.11.1998. The cut-off date for exercise of option under the last notification was 31.01.1999. About 2469 employees exercised option during periods covered by these 11 notifications to switchover from CPF to GPF. On 25.05.1999, a letter was addressed by the University Grants Commission on (the UGC, for short) to the Registrar of the University stating that the option in terms of the notification dated 1.5.1987 issued by the Central Government could be exercised only up to 30.09.1987; and if no option was received by said date the employees were deemed to have "come over" to the pension scheme and thus, option once exercised, was final. Further, the revised option given by the University to the SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE concerned employees to switch over from CPF to GPF after the deadline was incorrect and therefore, the cost of benefit, if any, to such employees must be met by the University from its own sources.

In response to a communication dated 18.09.1999 addressed by the UGC with respect to the subject regarding option of shifting from CPF to GPF, the Ministry of Human Resource Development, Department of Secondary Education and Higher Education, Government of India ("MHRD" for short) responded on 19.06.2000 and state:

"...That Ministry has regretted its inability to allow one more option to change over from CPF Scheme to the GPF Scheme to the employees of UGC and the institutions maintained by it."

On 8.08.2001, the UGC again requested MHRD to allow one extension for exercise of option to switch over from CPF to GPF. The proposal was, however, rejected by the Finance Ministry of the Central Government on the ground that the cost of introduction of pension scheme was much higher than the CPF and that such cost would continuously increase with every revision in the scale of pay and further that acceptance of such SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE proposal would have wide repercussions with many similarly placed autonomous bodies demanding similar extension.

In these circumstances, Writ Petitions were filed in the High Court claiming diverse reliefs. These petitions, by order dated 21.05.2012 passed by the learned Single Judge of the High Court, were categorised into three categories a. Employees who had not exercised any option at all and thus by virtue of the deeming provisions contemplated in the notification dated 01.05.1987, were deemed to

have "come over"

to GPF; but having continued to make contributions under the old CPF scheme were being treated to be under CPF. This batch was subsequently referred to as "R.N. Virmani batch of cases" in the decisions rendered by the High Court.

b. Employees who had not exercised the option by the cut-off date contemplated under the notification dated 01.05.1987 and were thus deemed to have "come over" to GPF; however, such employees had exercised the option to remain under CPF scheme during first two extensions granted by the University between 01.10.1987 to 29.02.1988; and were now praying that they be allowed to be under GPF. This batch of cases was described to be "N.C. Bakshi batch of cases" in the decisions rendered by the High Court.

c. Employees who had exercised positive option by 30.09.1987 ie by the original cut-off date contemplated under notification dated 1.5.1987 and had chosen to remain under CPF Scheme, but were now demanding that they be given further option and were therefore praying for extension of the cut-off date to enable them to "come over" to GPF. This group of matters was referred to as "Shashi Kiran batch of cases" in the decisions rendered by the High Court.

SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE Thus, the employees in all three batches of cases desired to be under GPF rather than under CPF and were therefore praying for a chance to facilitate such switchover.

These three batches of cases were disposed by the learned Single Judge of the High Court by three separate decisions dated 30.04.2014. In those order relief was given to the members of R.N. Virmani and H.C. Bakshi batch (except those who had collected their CPF) of cases but denied in the Shashikiran batch of cases. As the case in hand is a close variant of R.N. Virmani batch of cases we discuss the same in more details. However, we would like to place it on record that the other two batches having given an express choice of opting for CPF are certainly less meritorious than the case of the applicant's. And as those two later batches of cases were also allowed by the Division Bench of the Hon'ble High Court of Delhi and the Hon'ble Supreme Court affirmed the said orders with more reasoning, hence those other two batches of cases also further strengthen the case of the applicant.

A) R.N. Virmani batch of cases B) i) The reasoning that weighed with the learned Single Judge was:-

SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE "14. In my view, the answer to the question: as to whether employees, who had not issued any overt communication

with regard to his / her desire to continue with the CPF Scheme, stood covered by the Pension Scheme; would largely depend upon the provisions of O.M. dated 01.05.1987, itself.

14.1 It is not in dispute before me that O.M. dated 01.05.1987 was adopted by the University of Delhi vide notification dated 25.05.1987 read with notification dated 04.06.1987, pursuant to an approval received in that behalf from its Vice Chancellor. Therefore, much would depend, in my opinion, upon the language of the relevant clause of O.M. dated 01.05.1987. The said O.M. clearly applies to all employees who were CPF beneficiaries on 01.01.1986. Clause 3.1 read with clause 3.2 is plainly indicative of the fact that all such employees, who are CPF beneficiaries, shall be deemed, to have, come over to Pension Scheme unless the employee(s) concerned submitted his or her option to continue with the CPF Scheme. This option had to be submitted in the prescribed form to the concerned Head of Office by 30.09.1987. In case, no option was received by the Head of Office by 30.09.1987, employees were deemed to have come over to the Pension Scheme.

Therefore, by legal fiction once, the deeming clause kicked-in, those who did not submit their option form for continuation under the CPF Scheme stood covered by the Pension Scheme."

ii) To arrive at the conclusion as mentioned above, the learned Single Judge relied inter alia upon the following passages from the decision of this Court in Union of India and another v. S.L. Verma and others :

SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE ".4. The Central Government as also the respondent No.14- Bureau of Indian Standards have proceeded on some legal misconception that it was obligatory on the part of the said employees to give a positive option for the said purpose. For the first time on 2.2.1999, the respondent No.14 requested the Union of India for grant of another chance to the respondents to switch over to pension scheme stating that they purported to have exercised their option for CPF Scheme on the cut-off date.

7. The Central Government, in our opinion, proceeded on a basic misconception. By reason of the said Office Memorandum dated 1.5.1987 a legal fiction was created. Only when an employee consciously opted for to continue with the CPF Scheme, he would not become a member of the Pension Scheme. It is not disputed that the said respondents did not give their options by 30.9.1987. In that view of the matter respondent Nos. 1 to 13 in view of the legal fiction created, became members of the Pension Scheme. Once they became the member of the Pension Scheme, Regulation 16 of the Bureau of Indian Standards (Terms and Conditions of Service of Employees Regulations, 1988) had become ipso-facto applicable in their case also.

It may be that they had made an option to continue with the CPF Scheme at a later stage but if by reason of the legal fiction created, they became members of the Pension Scheme, the question of their reverting to the CPF would not arise. The respondent No.14 has correctly arrived at a conclusion that an anomaly would be created and in fact the said purported option on the part of respondent No.1 to 13 was illegal when a request was made by respondent No.14 to the Union of India for grant of approval so that all those employees shall come within the SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE purview of the Pension Scheme. In our opinion, the Ministry of Finance proceeded on a wrong premise that the Pension Scheme was not in existence and it was 4 (2006) 12 SCC 53 15 a new one. Two legal fictions, as noticed hereinbefore, were created, one by reason of the memorandum, and another by reason of the acceptance of the recommendations of the Fourth Central Pay Commission with effect from 1.1.1986. In terms of such legal fictions, it will bear repetition to state, the respondent nos.1 to 13 would be deemed to have switched over to the pension WP(C) 1490-1507/2006 & connected matters Page 26 of 33 scheme, which a fortiori would mean that they no longer remained in the CPF scheme..."

(Emphasis supplied by the learned Single Judge)

iii) The argument made by the respondents was dealt with as under

"16. The argument raised before me by the respondents, which veered towards approbation, was based on the fact that petitioners had continued to contribute under the CPF Scheme. This submission would not cut much ice with me, having regard to the plain terms of O.M. dated 01.05.1987. If, the cover under the Pension Scheme, gets triggered with effect from 30.09.1987, the contribution by an employee and its receipt by the employer clearly proceeds on a misconception of the provisions of O.M. dated 01.05.1987. WP(C) 1490-1507/2006 & connected matters Page 29 of 33 As a matter of fact, this very argument was repelled by the Supreme Court, in S.L. Verma's case, and I think, for good reason. Consequently, there is no room for entertaining such an argument. The relevant observations made in paragraph 7, specific to this aspect, are, once again, extracted hereinafter. "...It may be right they had made an SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE option to continue with the CPF Scheme at a later stage but if by reason of the legal fiction created, they became members of the Pension Scheme, the question of their reverting to the CPF would not arise..."

iv) It was therefore directed :-

"20. Having regard to the above discussion, the respondents University of Delhi/concerned Colleges will be entitled to recoup their contribution under the CPF Scheme, if not already recouped, with simple interest at the rate of 8% p.a."

v) The petitions were thus allowed.

7. These decisions in all three batches of cases were appealed against by the University before the Division Bench, which dealt with each of these batches and in all three relief provided to the employees, and against the University:-

A) R.N. Virmani batch of cases:

"17. This court is of opinion that the submissions of the University, the appellant, in regard to the Virmani's order, have no force. There is no denial and there can be none- that the nature of the scheme contemplated by the 01.05.1987 notification was to ensure that only those wishing to continue in the CPF scheme had to opt to do so. A default in that regard, meant that the employee not filling his option (to continue in CPF) was deemed to have "come over" or migrated to the Pension Scheme. The University and the official respondents (UGC, Central Government etc) had urged that the petitioners in the Virmani group are deemed to have accepted the CPF benefits, because they allowed deductions from their monthly salaries during the interregnum and permitting Pension Scheme SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE benefits would not be fair; in the same breath it was urged that there was delay. This court is of opinion that the University - and the respondents are relying on contradictory pleas. If they urge that the true interpretation of the 1987 circular meant that anyone not furnishing an option to continue in the CPF scheme is deemed to have opted for the Pension Scheme (as the Virmani group undoubtedly did) there is no way they can succeed on the ground of laches or estoppel. If plain grammatical meaning of the language of the May 1987 OM were to be given, all those who do not opt would automatically be borne in the Pension Scheme. Such being the position, the argument that the petitioners in Virmani allowed deduction of CPF amounts from their salary, cannot be argued against them. CPF schemes typically require employees to commit greater amounts than in GPF scheme, on a monthly basis. That these staff members allowed higher amounts, which were held under a scheme (and which earned interest), the benefit of which had not accrued and was not available to them till the date of superannuation, cannot be urged against them.

Likewise, the question of laches would not arise, because at the most, pension would not be allowed for the entire period, given that in matters of pension (see Union of India & Ors. V. Tarsem Singh (2008) 8 SCC 648) there is a continuing cause of action. Therefore, we find no infirmity with the learned Single Judge's order, in Virmani's case." 21 The appeals were thus dismissed.

The University accepted the decision of the Division Bench of the Hon'ble High Court of Delhi in R.N. Virmani batch of cases and as such no appeal had been preferred before the Apex Court. It, however, was in appeal in the other two batch of SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE cases and the Hon'ble Supreme Court after hearing, ruled the following:

15. — — — — — Thus, both these batches of cases were rightly decided by the learned Single Judge and the Division Bench. We, therefore, dismiss the appeal in N.C. Bakshi batch of cases.

25. Considering the circumstances on record, in our view, the decision rendered by the Division Bench of the High Court in Shashi Kiran batch of cases does not call for any interference except to the extent of direction for recouping of the contribution under CPF with 8% simple interest per annum. It is possible that at this length of time, some of the employees in Shashi Kiran batch of cases may not be interested in switchover to GPF. But an option must be afforded to them in such manner as the authorities deem appropriate. "

A closer look at these orders of Hon'ble Supreme Court and the Division Bench of the Delhi High Court and the Hon'ble Single Bench of the Delhi High Court, we may notice that the R.N Virmani batch of cases are where the individuals had not exercised any option at all and by legal fiction by virtue of deeming provision contemplated in the notification dated SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE 1.5.1987, they were deemed to have come over to GPF Scheme.

And the Hon'ble Court did not accept the argument of the respondents that having been borne initially on CPF and being continued to make contribution under old CPF scheme (beyond the due date of exercise of option), the applicant therein should be treated to be deemed under the CPF scheme only. The Virmani group of applicants also had 'almost' accepted their position as CPF contributors and were praying before the Hon'ble Court to permit them further time to opt back to GPF Scheme; as is the case of the applicant before us. Interestingly, when the Single Bench order of the Hon'ble High Court of Delhi was confirmed by the Division Bench of the Hon'ble High Court of Delhi, the department did not further prefer any appeal against the said case as the reasonings were self-evident in the case. The said orders were implemented for the Virmani batch of cases without further challenge.

The case of the applicant before us has great similarity to the Virmani batch of cases as the CPF/GPF scheme applicable to him also had similar conditions that the default scheme was GPF when no option was given; and to come to CPF, an affirmative SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE option had to be exercised. Not giving any option and continuing to contribute to the CPF Scheme is immaterial and by the same reasoning it cannot be considered as if by "inaction" or "omission", the applicant accepted and fell into the CPF scheme.

Although there was one difference that in those cases (Virmani Batch), the cut-off date for opting for CPF was upfront on 30.09.1987, whereas in the case of the present applicant, the cut-

off date for giving such an option was extended and stretched to 20 years. And it is a fact, not contested by parties, that the applicant has not given any option or choice to select the CPF scheme. By the ratio of this judgment (Virmani Batch) and by the same logic, by deeming provision and by the fiction of the said deeming provision, one could conclude that there was no conscious wish by the applicant to switchover to the CPF scheme till his severance from his first employer ISRO, although he continued contributing in CPF. The earlier employer (ISRO), the new employer (NAL) and the applicant, all had understood wrongly that the applicant was in "CPF scheme" as he was continuing contributing to CPF and was initially recognised as being in CPF (as the first condition as mentioned) in the OM SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE dated 16.07.2001 in No. SCF:PGA:ESTT-III: 1.16. Whereas, in reality once the applicant had not given any option, in default from the very beginning of his appointment as well as from the date of service of the said Annexure A-3 dated 16.7.2001 he was essentially continuing in GPF Scheme only due to deeming provision, although he was contributing to the CPF scheme as the members of the Virmani batch of cases.

In the case of the applicant, the day his services ceased at the first employer (ISRO) on 13.09.2006, his due deemed date to exercise any further choice to choose CPF ended, and that very day the deemed default clause of GPF automatically kicked in instantaneously in the absence of any express choice of CPF exercised.

A second reading of the four clauses earlier discussed in the Applicant's OM dated 16.07.2001 keeping in mind Hon'ble High Court and Hon'ble Supreme Court orders, and the Court's understanding of the deeming provisions in the case of Virmani batch of cases will amply clarify that 20 years was given to the applicant not for conversion to GPF, but 20 years was given as a window open to exercise express choice to join CPF. And in the SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE absence of any such exercised choice, the deeming provision of default option of GPF was available for the applicant from the very first day of the applicant's appointment (or OM dated 16.07.2001).

Hence, in the case of the applicant no sooner he ceased to be an employee of ISRO, without expressly choosing CPF, by default his 20 years postponed window of choice closed and in essence preponed deeming of GPF to the date of his relief from services from ISRO when no further he had any power to choose CPF, and unmistakably he was covered by GPF (as a default option in the absence of a choice) and not CPF (in spite of him continuing to contribute to CPF like Virmani batch of cases). We would like to advise re-reading the interpretation of the Hon'ble High Court and the Hon'ble Supreme Court order in the Virmani batch of cases to understand this further.

Hence, in the light of Virmani batch of cases (supra) we are of the firm opinion that on the day of his acceptance of his technical resignation on a permanent absorption basis, vide letter dated 21.08.2006 and his relief on 13.9.2006 the deemed default clause will kick in automatically for GPF, and window of 20 SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE years postponed choice to switch over to CPF closed for the applicant. We have no doubt that the applicant was covered under GPF only, as there was merely a lack of understanding about it as he had been continued contributing to CPF as amply

explained in the Virmani batch of cases. Merely, by contributing to CPF, the applicant does not become a member of CPF, as he had not positively opted for and wished to switchover to CPF Scheme. The applicant had never made any such choice. In terms of the Hon'ble Supreme Court order confirming the Single Judge and the Division Bench order of the Hon'ble High Court of Delhi, in the case of R.N.Virmani and Others (supra), we are of the firm opinion that the case of the applicant is more or less identical to the said cases, and being covered so, is entitled to similar relief.

Such being the position, the argument that the petitioner allowed deduction of CPF amount from his salary cannot be argued against the applicant. Therefore, by legal fiction, once the deeming clause kicks in, as the applicant did not submit his option for continuation under the CPF scheme as was required by Annexure A-3 O.M dated 16.7.2001, he effectively by default SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE remains in the GPF scheme on the date of his relief from ISRO on 13.09.2006, which fact was neither understood by the applicant nor by the employers. This particular case is mistaken, misunderstood or misinterpreted fact of the nature of the applicant's CPF/GPF status due to complexity of the rules, its wording and its deeming provisions. On this count also we are of the considered opinion that the delay in this particular case will have to be condoned in favour of the applicant.

36. Q.3. Acceptance of his CPF contribution subsequently by the applicant, on 05.11.2007, did he foreclosed his options to be considered as within the purview of the GPF Scheme?

Ans. The basic fact of the case is that the applicant expressed his decision to join NAL, respondent no.3 organisation by tendering technical resignation on 25.10.2005 and the respondent no.6 organization issued a NOC to the applicant granting him permission to apply for the post of Scientist in Group IV (2) at NAL and his letter was forwarded on 24.11.2005 and respondent no.3 organisation issued offer of appointment as Scientist in Group IV (2) vide their letter dated 17.8.2006 and subsequently the applicant has tendered technical resignation on SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE permanent absorption 21.8.2006, and he was relieved on 13.09.2006 from ISRO, and he joins new employment under respondent no.3 organisation on 14.09.2006 and on 5.11.2007, respondent no.6 organisation cleared his CPF final settlement amount without transferring it to the respondent no.3 organization.

The averment of the respondents that, whatever his legal status is, as he has not given a conscious choice to be in CPF or GPF, but as on the date of his severance of service from his previous employer, he was contributing to CPF which cannot be denied and this further was confirmed by his subsequent conduct as he accepted CPF final settlement amount without a demur on 5.11.2007 from his previous employer and only in the year 2020 vide his representation dated 28.5.2020, he sought to be covered under CCS (Pension) Rules, 1972 and requested for switch-over from the CPF/NPS scheme to the GPF scheme, that he should be considered as being covered by CPF only. The respondents further argued that the acceptance of the amount goes against the applicant, and he is estopped from changing his stance that he SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE was continued to be

covered under CPF Scheme. Now that he is in CPF and at this late stage he cannot ask for going back to GPF.

The applicant's case is unusual that his nature of pensionary benefit in the first employment was not properly understood due to confused wordings of the covenants in the OM dated 16.07.2001. As we have earlier discussed under the head of the other questions, whether he was covered under the CPF or GPF scheme at the time of his resignation and relief from his first employment at ISRO. It is evident that the case of the applicant is on a better footing than the cases of the batch of N.C.Bakshi and the batch of Shashi Kiran group of cases. And from the reading of the said judgment, it is clear that after considering all the facts and circumstances and complexity of the said cases, the Hon'ble Supreme Court decided to agree with the Division Bench of the High Court judgment in Shashi Kiran batch of cases that they do not call for any interference except to the extent of direction for recouping of the contribution under CPF with 8% simple interest per annum, considering them also deserving to be given relief. Further as discussed elaborately the applicant before us has a case which is a close variant of Virmani SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE batch of cases which were most straight forward case and the Department did not ever appeal against the Division Bench of Hon'ble High Court order in that batch of cases before the Hon'ble Supreme Court.

Merely because, due to lack of clear understanding of the default option and meaning of choice open for 20 years (which was a window open to choose CPF and not to choose the default of GPF) and his own de-facto and de jure default status as a GPF employee (even though continuing to contribute to CPF well explained by the Hon'ble Apex Court order in the Virmani batch of cases), and the fact that the applicant was recruited much earlier than the introduction of the new pension scheme, effective from 1.1.2004, at this juncture it cannot be said to take another view, as it is a case of pension where there is strong case on merit also, so it cannot be argued that the delay should not be condoned, and the injustice done to the applicant due to misinterpretation of facts should not be corrected. On merits of this case also we are inclined to say emphatically that this is a deserving and unusual case to condone the delay, as all the confusion has been created by the way policy condition are SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE worded. And we are of the considered opinion that the ends of justice will be met by giving relief to the applicant, by incorporating the same condition for the applicant as imposed by the Hon'ble Apex Court in Shashi Kiran and other batches of cases for recouping of the employer contribution under CPF, with 8% simple interest to be deposited back with his ex- employer for the period of his previous service.

We are of the firm opinion that in an unusual case like this where factual position and legal implications of clauses are not easily appreciated, there cannot be any justification to deny the benefit of beneficial default option of GPF/CPF policy, and all other consequent benefits to the applicant merely on the ground that unwittingly the applicant received the proceed of his CPF from his previous employer. Further, it is not denied that the previous service of the applicant has been duly considered by the respondents, his new employer, vide O.M. dated 27.8.2012 and his pay is revised after reckoning due pay protection from his last pay drawn on his exit from ISRO as per rule.

37. Further, it is not denied that in the respondent's organisation also similarly placed employees were there and vide SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE letter dated 6.4.2011 issued by CSIR, Annexure A-24 dated 6.04.2011, No.5-1(58)/2008-PD, with the subject, "Instructions to switchover from CPF Scheme to Pension Scheme - reg.", conversion from the CPF scheme to the GPF Scheme is possible with certain conditions. The order of CSIR which is applicable to the applicant's present employer, NAL, wherein, inter-alia, other things it mentions that:

"Sub: Instructions to switchover from CPF Scheme to Pension Scheme - reg.

Sir.

A majority of Scientists working in Group IV in CSIR system are by and large covered by GPF Scheme. There is still a small group of Scientists that continue to be governed by CPF Scheme. From time to time, instructions were issued to enable them to switch over to GPF Scheme. These instructions were applicable to Scientists who have been confirmed as Scientists in Group IV. Some of these Scientists could not opt for GPF as they were not made permanent before the last date of option for switching over from CPF to GPF.

DG, CSIR has been receiving representations from such Scientists requesting for another option be given to them to switch over from CPF to GPF. In order to resolve the issue once for all, DG, CSIR constituted a Committee under the chairmanship of Dr. Chandra Shekhar, Director, CEERI, Pilani to examine and SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE make holistic recommendations to settle the issue once for all.

After critical examination of all the relevant material and instructions issued on the subject from time to time, information made available by Labs./Instts, and detailed discussion, the Committee came to the conclusion that there are Scientists who continue to be governed by the CPF Scheme as either they had opted for CPF or for various reasons could not exercise any option. With the examination of the instructions on the subject, the Committee converged to the view that Scientists confirmed w.e.f 28.11.1984 or thereafter should be covered by the Pension Scheme automatically from the date of their confirmation.

The DG, CSIR in consultation with FA, CSIR and Legal Advisor, CSIR approved the recommendations of the Committee as under:

1. Options sought from Scientists vide CSIR circular letters No. 17(197)/90-E.II dated 14.5.1991 and 25/01/99 to move from CPF to GPF should apply only with reference to the contractual period (served prior to the date of confirmation).

2. All Scientists who were appointed before 01/01/2004 (when the New Pension Scheme came in vogue) and confirmed w.e.f 28/11/1984 or thereafter should be covered by the Pension Scheme automatically from the date of their confirmation.

3. Option exercised by Scientists in 1991 or 1999 should be applicable only in respect of SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE the period of service rendered under the contract prior to their confirmation.

4. Those Scientists who have not exercised any option till date will be deemed to have opted for CPF for the period of service rendered under contract prior to their confirmation in accordance with the CCS(Pension) Rules, 1972.

The above instructions to switchover from CPF to Pension Scheme may kindly be implemented with immediate effect."

The above cases and the three batches of cases before the Hon'ble Supreme Court (1. Virmani batch 2. Bakshi batch and

3. Shashi Kiran batch), come out of the same policy of CPF/GPF conversion and related choices and default cases. Shashi Kiran batch of cases were rejected by the Single Bench of the High Court but was allowed by the Division Bench on equity grounds. In our considered opinion not giving relief to the applicant in the facts and circumstances of this case will be clear violation of Articles 14 and 16 of the Constitution, and hence, that line of thought also strengthens the case of the applicant.

Further argument of the respondents is that if this O.A is allowed, there will be similarly placed others who would come SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE forward in the organisation to claim the same benefit in due course. Hence, it will be a financial burden to the respondent's organisation. But this argument has also been clearly explained and rejected in paragraph 24 of the Hon'ble Apex Court judgment in the following terms.

24. According to the notification dated 01.05.1987, the employees joining the service after 01.01.1986 would always be under GPF. With respect to those who were in service on 01.01.1986, said employees would be deemed to have "come over" to GPF unless an option to continue to be under CPF was consciously exercised before the cut-off date. Thus, when the Scheme was framed and was sought to be implemented, the concerned authorities must have taken into account the entire magnitude such as, the number of employees and the likelihood of impact on the management of the fund, so that reasonable returns can be effected by way of pension upon retirement of such persons. Going by the intent of the notification, those who were to opt for CPF, were an exception and the general rule was that everybody after 01.01.1986 would normally be covered by GPF. It is in this context that the number of original petitioners in Shashi Kiran batch of cases has to be seen. We are concerned with only 75 persons. On the other hand, the bulk of people namely 2469 employees were granted the choice of reverse switchover and they were allowed all the

benefits under GPF. It can reasonably be said that when the notification dated 01.05.1987 was issued, the authorities were conscious of the possibility that all the employees may 'come over' to GPF. 48 With that possibility in mind, the fund was constituted and the affairs were arranged. The shift of those 75 employees would not in any way affect the strength SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE and the character of the fund if a direction that the entire contribution made by the authorities be returned with reasonable rate of interest is issued. These 75 petitioners had approached the Court in the year 2010. At this length of time, it is not as if any floodgates are going to open and there will be drain on the resources of the State. A direction can, therefore, be issued, as was done by the learned Single Judge in paragraph 20 of his Judgment in R.N. Virmani batch of cases and which aspect was mentioned in the letter dated 23.01.2017 referred to in paragraph 8 hereinabove, for recouping the contribution under CPF with 8% simple interest per annum."

38. Considering the above discussions, we do not find other citations by the respondents relevant i.e., order in O.A 170/240/2022 of our co-ordinate bench dated 27.9.2023 in the case of Dr.Shashi Bhushan Verma v. Union of India and Others; wherein factual matrix is different as the case was regarding adhoc appointment prior to 1.1.2004 and the process of inviting application for the post which was initiated in 2004 only and the applicant therein was appointed in December 2004. Hence, he was not eligible for one time option to be covered under CCS (Pension) Rules, 1972 as per the provisions contained in O.M 17.2.2020 and he was entitled for the benefit under NPS. Hence, the said citation in no way substantiated the case of the respondents.

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39. The applicants have also cited certain other rulings but as their case in our considered opinion is fully covered by the Hon'ble Supreme Court judgment and order in Tarsem Singh (supra) as well as Sashi Kiran batch of cases, R.N.Virmani (particularly this one) batch of cases and N.C.Bakshi group of cases, hence those other cases need not be further examined.

40. Q4. If so, what orders?

As discussed above, if on the date of his resignation the applicant was covered under GPF Scheme in ISRO in 2006, hence when he joined 'NAL' the same year (2006), he will be governed by the clause 6(iii) and not 6(ii) of the Annexure-I of the offer of appointment dated 17.08.2006, which read as following:-

"6(iii). However, persons joining an autonomous body on or after 1.1.2004 from other body/PSU/Central Departments/Autonomous Universities having pension scheme on GOI pattern will continue to be governed by existing pension scheme i.e., CCS(Pension) Rules, 1972, subject to discharge of Prorata Pension Liability by the parent department, where the incumbent was working."

41. Considering the same, we pass the following orders:

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(i) The Original Application is allowed by quashing the order bearing No CSIR-NAL/Admin-

ADB/2020-21 dated 13.07.2020 (Annexure 15), order bearing no CSIR-NAL/Admin-ADB/2020-21 (Annexure 17), dated 04.09.2020 (Annexure 17), order bearing □□ADB(Estt)/53573/RNCAC dated 25.07.2022 (Annexure 20), order bearing no AII/53573/Sec IV dated 05.04.2023(Annexure 23) passed by the respondent no 3 refusing a switchover from CPF to GPF scheme for the applicant.

(ii) It is declared that as a default option the applicant was always covered by GPF Scheme in the absence of any choice made for CPF Scheme till his technical resignation from ISRO, although he was contributing to the CPF Scheme till his relief.

(iii) Respondent no.3 is directed to consider the applicant's request to switch-over from the CPF scheme to the GPF scheme by considering the applicant as being in the GPF scheme on the date of his appointment in first organisation, respondent SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE no.6, ISRO, on 04.12.2000, and to consider him continued in the same till he retired, as no option has been given and he is permitted to be as such and to claim all consequential benefits of past service for the purpose of pension and GPF with the new organisation NAL.

(iv) The applicant shall deposit the CPF employer's contribution which he had received earlier erroneously, due to incorrect understanding of rules and facts, with 8 % simple interest, with his old employer ISRO (Respondent No.6) within 2 weeks from the date of receipt of the certified copy of this order.

(v) Respondent no.6 ISRO is directed to receive the said amount and ISRO shall arrange and make necessary payment for his proportionate pensionary benefit for the years of Applicant's service with them as per rule to the applicant's new employer NAL, i.e. Respondent no.3 in four weeks' time as SHAINESHAINNEY VIJU CAT Bangalore Y VIJU 2025.12.05 17:12:15+05'30' O.A.No.170/00341/2024/CAT/BANGALORE and when they receive such proposal from the Respondent No.3 NAL.

(vi) NAL is permitted to accordingly convert his NPS contributions as per rule and to take any other consequential action immediately. The NAL may further take steps to calculate and request ISRO in four weeks' time to deposit the proportionate pensionary employer's contribution for the applicant for the years the applicant served in ISRO.

This order shall be implemented expeditiously and in no case later than four months from the date of receipt of the certified copy of this order.

Accordingly, Miscellaneous Applications, if any pending, are disposed of.

No costs.

Sd/-

Sd/-

(DR. SANJIV KUMAR)
MEMBER (A)

(JUSTICE S. SUJATHA)
MEMBER (J)

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